

Court No. - 37

Case :- WRIT - C No. - 46995 of 2012

Petitioner :- Kamlawati Devi

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- S.N. Chauhan

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Sri Mahboob Ahmad, learned counsel appearing for the respondents prays for and is allowed a week's time to obtain instruction in the matter.

Put up as fresh on Monday, i.e., 24.9.2012.

Order Date :- 14.9.2012

SKM

Court No. - 37

Case :- WRIT - C No. - 46995 of 2012

Petitioner :- Kamlawati Devi

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- S.N. Chauhan

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Mrs. Sunita Agarwal,J.

Sri Mehboob Ahmad, learned counsel for the respondent prays for and is allowed three days' time to file counter affidavit.

Put up on 9.10.2012 as fresh.

Order Date :- 3.10.2012

P.P.

Court No. - 37

Case :- WRIT - C No. - 46995 of 2012

Petitioner :- Kamlawati Devi

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- S.N. Chauhan

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Pankaj Naqvi,J.

As prayed by Sri Mahboob Ahmad for getting instructions,
put up on 29.10.2012 as fresh.

Order Date :- 10.10.2012

Chandra

Court No. - 37

Case :- WRIT - C No. - 46995 of 2012

Petitioner :- Kamlawati Devi

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- S.N. Chauhan

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

As prayed by the learned counsel for the respondents, put up tomorrow as fresh.

Order Date :- 29.10.2012

SKM

Court No. - 37

Case :- WRIT - C No. - 46995 of 2012

Petitioner :- Kamlawati Devi

Respondent :- State Of U.P. Thru Secy. And Others

Petitioner Counsel :- S.N. Chauhan

Respondent Counsel :- C.S.C.,Mahboob Ahmad

Hon'ble Ashok Bhushan,J.

Hon'ble Abhinava Upadhya,J.

Heard learned counsel for the petitioner and Shri Mahboob Ahmad appearing for the respondent nos. 3 to 5.

By this petition, the petitioner has prayed for quashing the demand notice dated 25/6/2012 demanding an amount of Rs. 4,19,932/-.

Petitioner's case in the writ petition is that the premises in question was let out to the Forest Department which was being charged on commercial basis. However, the department's tenancy came to an end in the year 1995 and all dues were paid by the Forest Department which were due at the relevant time. He submits that the petitioner after 1995 was being charged on the Commercial basis and a Complaint No.66/2009 has also been filed before the District Consumer Forum, Basti which is pending consideration.

Shri Mahboob Ahmad after obtaining instruction submitted that the petitioner was never charged on commercial basis and only domestic bills were sent and no regular payments have been made by the petitioner after 1995. More so, no proof of any payment except payment of Rs. 2500/- has been produced by the petitioner before the department concerned. The connection was in the name of the petitioner's husband, who is now dead and the petitioner who is using the premises is liable to pay the charges.

Learned counsel for the petitioner submits that the petitioner's objection submitted before the Executive Engineer dated 31/7/2012 was not decided and the matter is also pending before the Consumer Forum.

We are of the view that it is not a fit case to be entertained in writ proceedings.

Petitioner having already filed complaint before the District Consumer Forum, it is open for him to pursue the said complaint or file an objection in accordance with the provisions of the U.P. Electricity Supply Code, 2005.

With the aforesaid observation, the writ petition is disposed of.

Order Date :- 30.10.2012

SB